

§ 302.1. Jurisdiction. 1. The family court has exclusive original jurisdiction over any proceeding to determine whether a person is a juvenile delinquent.

2. In determining the jurisdiction of the court the age of such person at the time the delinquent act allegedly was committed is controlling.

3. With respect to a youth over sixteen and less than seventeen years of age or, a person over sixteen and less than eighteen years of age commencing October first, two thousand nineteen, whenever a crime and a violation arise out of the same transaction or occurrence, a charge alleging both offenses shall be made returnable before the court having jurisdiction over the crime. Nothing herein provided shall be construed to prevent a court, having jurisdiction over a violation relating to a criminal act from lawfully entering an order in accordance with section 345.1 of this article where such order is not based upon the count or counts of the petition alleging such criminal act.

4. Where a proceeding had been commenced in the youth part of a superior court for an act alleged to have been committed prior to his or her eighteenth birthday and then had been removed to family court, the family court shall exercise jurisdiction under this article, notwithstanding the fact that the respondent may be over the age of eighteen prior to the proceeding having commenced in the family court.